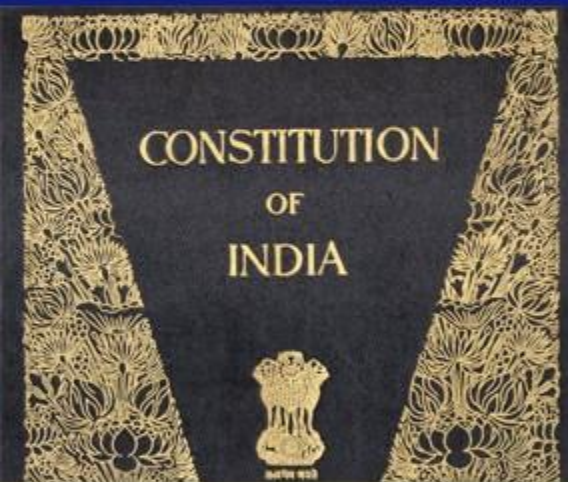


INDIAN POLITY



MODULE - 15

**SALIENT FEATURES OF
THE CONSTITUTION**

(PART-4)

THE SALIENT FEATURES OF THE CONSTITUTION

POINT NO. 13

UNIVERSAL ADULT FRANCHISE WITHOUT COMMUNAL REPRESENTATION



- 1 The adoption of Universal Adult Suffrage (Article 326) without any qualification either of sex, property or taxation is a bold experiment in India given the overwhelming illiteracy at the time of independence.
- 2 The **concept of popular sovereignty** which underlies the declaration in the preamble that the Constitution is adopted and given by the people of India to themselves would be a hollow statement unless the franchise was extended to the entire adult population.

THE SALIENT FEATURES OF THE CONSTITUTION

POINT NO. 13

UNIVERSAL ADULT FRANCHISE WITHOUT COMMUNAL REPRESENTATION



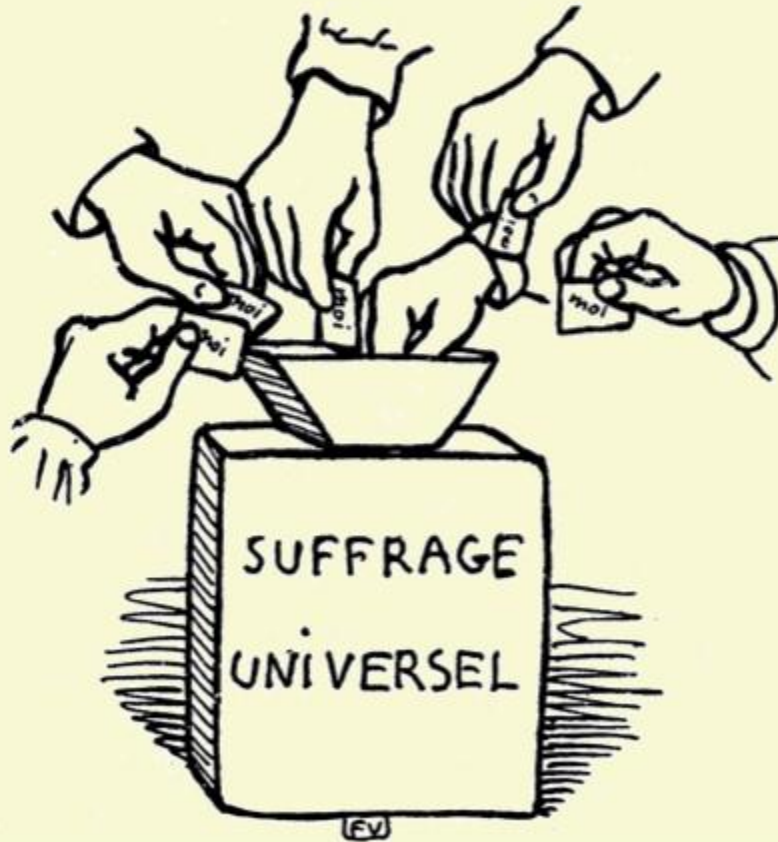
3

Universal Adult Franchise enhances the self-respect and prestige of the common people upholds the principle of the equality, enables the minorities to protect their interests and opens up new hopes for weaker sections.

THE SALIENT FEATURES OF THE CONSTITUTION

POINT NO. 13

UNIVERSAL ADULT FRANCHISE WITHOUT COMMUNAL REPRESENTATION



4 The other creditable achievement of the our Constitution makers is **the abolition of communal representation**, which had brought about the partition of India.

5 In the new Constitution there is **no reservation of seats except for the Scheduled Caste and Scheduled Tribe and for the Anglo Indians.**

THE SALIENT FEATURES OF THE CONSTITUTION

POINT NO. 14

SINGLE CITIZENSHIP

- 1** Though the Indian Constitution is federal and envisages dual polity (Centre and States) it provides for only single citizenship i.e. Indian citizenship.
- 2** In countries like USA each person is not only a citizen of USA, but also the citizen of the particular State, which he belongs.
- 3** Thus, he has allegiance to both National Government and State Government.
- 4** In India, all citizens irrespective of the State, in which they are born or reside enjoy the same political and civil rights of citizenship all over the country and no discrimination is made between them excepting in few cases like tribal areas, Jammu and Kashmir and so on.

THE SALIENT FEATURES OF THE CONSTITUTION

INDEPENDENT BODIES

POINT NO. 15



- 1 The Indian Constitution not only provides for legislative, executive and judicial organs, but also establishes certain independent bodies.
- 2 They are envisaged by the Constitution as the **bulwarks of democratic system** of government in India.

THE SALIENT FEATURES OF THE CONSTITUTION

POINT NO. 15

INDEPENDENT BODIES

3

These are:

- a) **Election Commission** to ensure free and fair elections to the Parliament, State Legislature and so on
- b) **Comptroller and Auditor General of India** to audit the accounts of Central and State Governments. He acts as the Guardian of Public Purse and comments on the legality and propriety of the Government expenditure.



THE SALIENT FEATURES OF THE CONSTITUTION

INDEPENDENT BODIES

POINT NO. 15



- 3 c) **Union Public Service Commission** to conduct examination for recruitment to All India Services and Higher Central Services and advise the President on disciplinary matters.
 - d) **State Public Service Commission** in every State to conduct examination for recruitment to State services and to advise the Governor on disciplinary matters.
-
- 4 The Constitution ensures the independence of these bodies through various provisions like security of tenure, fixed service condition and so on.

THE SALIENT FEATURES OF THE CONSTITUTION

EMERGENCY PROVISIONS

POINT NO. 16



- 1** The Indian Constitution contains elaborate emergency provisions to meet any extraordinary situation effectively.
- 2** The rationality behind the incorporation of these provisions is to safeguard the sovereignty, unity, integrity and security of the country, the democratic political system and the Constitution.

THE SALIENT FEATURES OF THE CONSTITUTION

POINT NO. 16

EMERGENCY PROVISIONS

3 The Constitution envisages **three types of emergencies**, namely:

- a) **National emergency** on the ground of war or external aggression or armed rebellion (**Article 352**)
- b) **State emergency (President's Rule)** on the ground of failure of Constitutional machinery in the States (**Article 356**) or failure to comply with the directions of the Centre (**Article 365**) and
- c) **Financial emergency** on the ground of threat to the financial stability or credit of India (**Article 360**).

4 During an emergency, the Central Government become an all-powerful unit.

5 It converts the **federal structure into a unitary one** without a formal amendment of the Constitution.

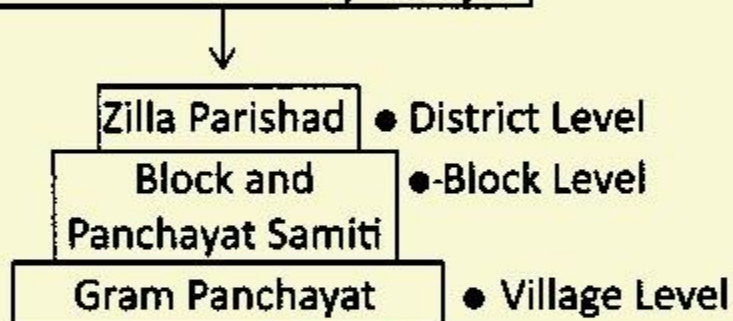
6 This kind of transformation of the political system from federal (during normal times) to unitary (during emergency) is a unique feature of the Indian Constitution.

THE SALIENT FEATURES OF THE CONSTITUTION

THREE-TIER GOVERNMENT

POINT NO. 17

Structure of Panchayati Raj



1 Originally, the Indian Constitution, like any other federal Constitution, provided for a dual polity and contained provisions with regard to the organization and powers of the Centre and the States.

2 Later, the 73rd and 74th constitutional Amendment Acts (1992) have added third-tier of Government which is not found in any other Constitution of the world.

THE SALIENT FEATURES OF THE CONSTITUTION

THREE-TIER GOVERNMENT

POINT NO. 17



3 The 73rd Amendment Act of 1992 gave constitutional recognition to the Panchayats (rural local Governments) by adding a new Part IX and a new Schedule 11 to the Constitution.

4 Similarly, the 74th Amendment Act of 1992 gave Constitutional recognition to the municipalities (urban local Governments) by adding a new Part IX-A and a new Schedule 12 to the Constitution.

THE SALIENT FEATURES OF THE CONSTITUTION

CO-OPERATIVE SOCIETIES

POINT NO. 17

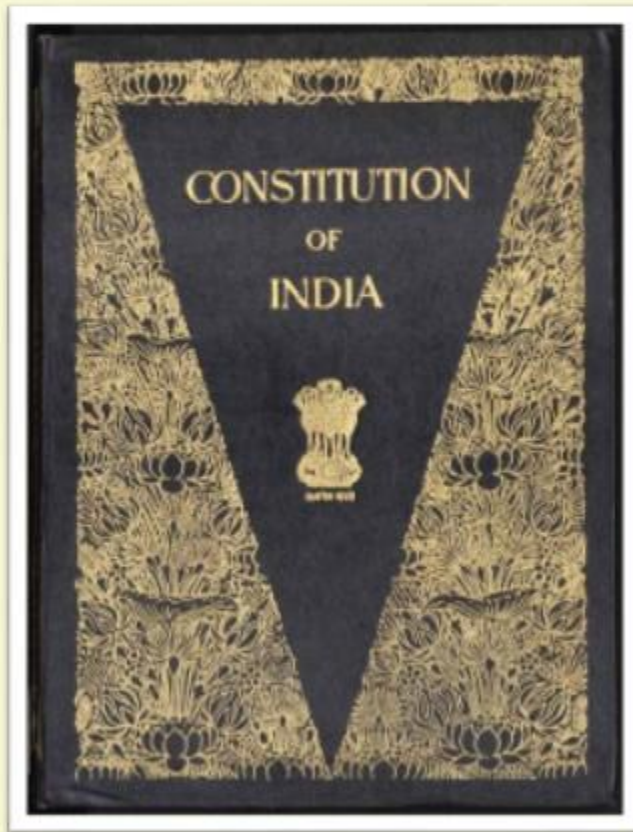


- 1 The 97th Constitutional Amendment Act of 2011 gave a constitutional status and protection to co-operative societies.
- 2 In this context, it made the following three changes in the Constitution:
 - It made the right to form co-operative societies a fundamental right (Article 19)
 - It included a new Directive Principle of State Policy on promotion of co-operative societies (Article 43-B).
 - It added a new Part IX-B in the Constitution which is entitled as "The Co-operative Societies" (Article 243-ZH to 243-ZT).

THE SALIENT FEATURES OF THE CONSTITUTION

CO-OPERATIVE SOCIETIES

POINT NO. 17



- 3** The new Part IX-B contains various provisions to ensure that the co-operative societies in the Country function in a democratic, professional, autonomous and economically sound manner.
- 4** It empowers the **Parliament in respect of multi-state cooperative societies** and the **State legislatures in respect of other co-operative societies** to make the appropriate law.

SUMMARY OF SALIENT FEATURES OF THE INDIAN CONSTITUTION

- 1 DRAWN FROM DIFFERENT SOURCES
- 2 LENGTHIEST WRITTEN CONSTITUTION
- 3 MORE FLEXIBLE THAN RIGID
- 4 PARLIAMENTARY FORM OF GOVERNMENT
- 5 FEDERAL SYSTEM WITH UNITARY BIAS
- 6 INTEGRATED AND INDEPENDENT JUDICIARY
- 7 JUDICIAL REVIEW MAKES THE CONSTITUTION LEGALISTIC
- 8 SYNTHESIS OF PARLIAMENTARY SOVEREIGNTY AND JUDICIAL SUPREMACY
- 9 FUNDAMENTAL RIGHTS
- 10 DIRECTIVE PRINCIPLES OF STATE POLICY
- 11 FUNDAMENTAL DUTIES
- 12 SECULAR STATE
- 13 UNIVERSAL ADULT FRANCHISE
- 14 SINGLE CITIZENSHIP
- 15 INDEPENDENT BODIES
- 16 EMERGENCY PROVISIONS
- 17 THREE-TIER GOVERNMENT
- 18 CO-OPERATIVE SOCIETIES

CRITICISM OF THE CONSTITUTION

The Constitution of India as framed and adopted by the Constituent Assembly of India has been criticized on the following grounds:

POINT NO: 1

A BORROWED CONSTITUTION

1 The critics opined that the Indian Constitution **contains nothing new and original.**

2 They described it as a 'borrowed constitution' or a 'bag of borrowings' or a 'hotchpotch constitution' or a 'patchwork' of several documents of the World Constitutions.

3 However, this **criticism is unfair and illogical.** This is because, the framers of the constitution made necessary modifications in the features borrowed from other constitutions for **their suitability to the Indian conditions, at the same time avoiding their faults.**

CRITICISM OF THE CONSTITUTION

A BORROWED CONSTITUTION

POINT NO: 1

- 4 While answering the above criticism in the Constituent Assembly, Dr.B.R Ambedkar, the Chairman of the Drafting Committee, said:

“One likes to ask whether there can be anything new in a Constitution framed at this hour in the history of the World. More than hundred years have rolled over when the first written Constitution was drafted. The only new things, if there can be any, in a constitution framed so late in the day are the variations made to remove faults and to accommodate it to the needs of the Country. The charge of producing a blind copy of the Constitutions of other Countries is based, I am sure, on an inadequate study of the Constitution”.

CRITICISM OF THE CONSTITUTION

A CARBON COPY OF THE 1935 ACT

POINT NO: 2

1 The critics said that the framers of the constitution have included a large number of the provisions of the Government of India Act 1935 into the Constitution of India. Hence, they called the constitution as a “Carbon Copy of the 1935 Act”.

2 Dr. B.R. Ambedkar answered the above criticism in the Constituent Assembly in the following way:

*“As to the accusation that the Draft Constitution has reproduced a good part of the provisions of the Government of India Act, 1935, I make no apologies. There is **nothing to be ashamed of in borrowing**. It involves no plagiarism. Nobody holds any patent rights in the fundamental ideas of a Constitution. What I am sorry about is that the provisions taken from the Government of India Act, 1935, relate mostly to the **details of administration**”.*

CRITICISM OF THE CONSTITUTION

UN-INDIAN OR ANTI-INDIAN

POINT NO: 3

1 According to the critics, the Indian Constitution is 'un-Indian' or 'anti-Indian' because it does not reflect the political traditions and the spirit of India.

2 They said that the foreign nature of the Constitution makes it unsuitable to the Indian situation or unworkable in India



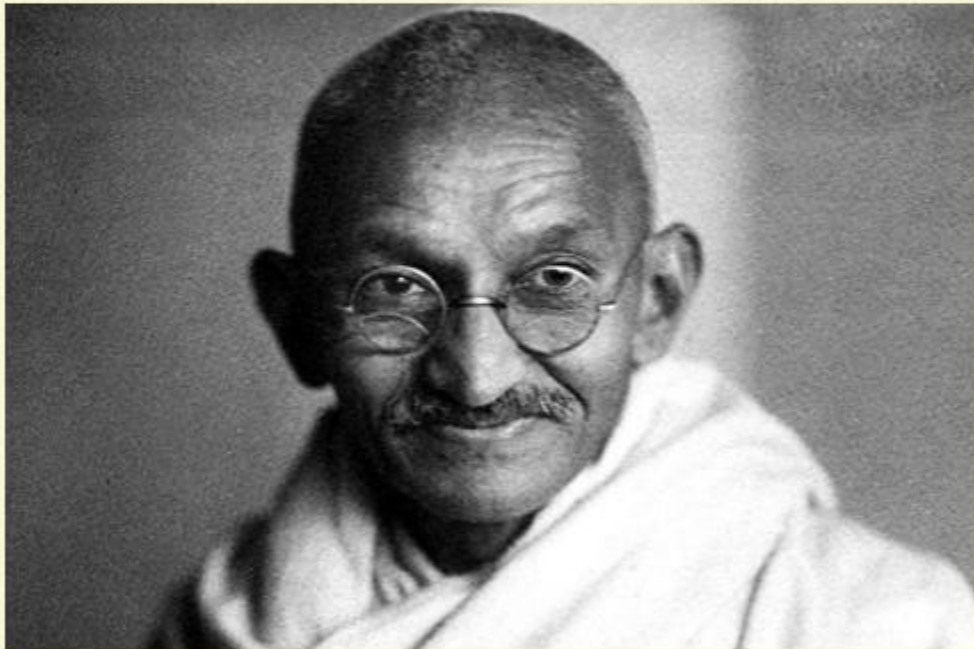
3 In this context, K. Hanumanthaiya, a member of the Constituent Assembly, commented:

"We wanted the music of Veena or Sitar, but here we have the music of an English band. That was because our constitution-makers were educated that way. The ideals on which this draft constitution is framed have no manifest relation to the fundamental spirit of India. This constitution would not prove suitable and would break down soon after being brought into operation".

CRITICISM OF THE CONSTITUTION

AN UN-GANDHIAN CONSTITUTION

POINT NO: 4



- 1 According to the critics, the Indian Constitution is Un-Gandhian because it **does not contain the philosophy and ideals of Mahatma Gandhi**, the father of the Indian Nation.
- 2 They opined that the Constitution should have been **raised and built upon village panchayats and district panchayats**.
- 3 **T. Prakasam**, another member of the Constituent Assembly, attributed this lapse to Ambedkar's non-participation in the Gandhian movement and **the antagonism towards Gandhian ideas**.

CRITICISM OF THE CONSTITUTION

POINT NO: 5

ELEPHANTINE SIZE



1 The critics stated that the Indian Constitution is **too bulky and too detailed** and contains some unnecessary elements.

2 In this context, H.V. Kamath, a member of the Constituent Assembly, commented:

"The emblem and the crest that we have selected for our assembly is an elephant. It is perhaps in consonance with that our constitution too is the bulkiest that the World has produced".

CRITICISM OF THE CONSTITUTION

PARADISE OF THE LAWYERS

POINT NO: 6



- 1 According to the critics, the Indian Constitution is **too legalistic and very complicated**.
- 2 They opined that the legal language and phraseology adopted in the constitution makes it a **complex document**.
- 3 The same Sir Ivor Jennings called it a **“lawyer’s paradise”**.

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